

Tentative Rulings for September 8, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Carol Delfosse-Kidd at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Meeting Number: **160 520 9376**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2505991	ANTHONY VS RPK DEVELOPMENT CORPORATION	PLAINTIFF MELVIN ANTHONY JR.'S MOTION TO QUASH OR, IN THE ALTERNATIVE, MODIFY DEPOSITION SUBPOENA

Tentative Ruling: Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (Code Civ. Proc., § 2020.220, subd. (c).)

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (Code Civ. Proc., § 1987.1, subd. (b).)

If a party seeks to subpoena personal records (e.g., medical and insurance records) and employment records, then the party must serve on the consumer/employee a notice to consumer along with a copy of the subpoena. (Code Civ. Proc., §§ 1985.3, subds. (b) & (e); 1985.6, subds. (b) & (e).) The party-consumer/employee whose records are sought may move to quash or modify the subpoena under Code of Civil Procedure section 1987.1. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).)

Code of Civil Procedure section 1987.1 requires that a motion to quash a subpoena be “reasonably made,” but does not require that the parties first resolve the issue informally. (See Code of Civ. Proc., §1987.1.)

Plaintiff argues the Subpoena is not tailored to the claimed injury, is an unreasonable violation of privacy, and the date limit does not cure its absence of a subject-matter limit. Plaintiff asserts when a patient tenders a mental or emotional condition, Evidence Code section 1016 creates an exception only for a communication relevant to that condition. Plaintiff maintains the Subpoena must be limited to the emotional condition Plaintiff placed in controversy.

RPK argues the Subpoena seeks information implicated by Plaintiff's emotional distress and disability claims.

Both parties cite Evidence Code section 1016, *In re Lifschutz* (1970) 2 Cal.3d 415, and *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859-864 to support their respective positions.

There are three issues: privacy, psychotherapy privilege, and attorney client privilege.

Here, by presenting this lawsuit and asserting claims for IIED and violation of the Americans with Disabilities Act, Plaintiff has placed his physical and mental health at issue. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840 [a personal injury plaintiff partially waives the right of privacy to medical records by filing a lawsuit; *Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279 ["It is unfair to allow a party to raise an issue involving her medical condition while depriving an opposing party of the opportunity to challenge her claim"].) However, the compelled disclosure must be precise and narrowly tailored. (*Britt, supra*, 20 Cal.3d at 856.)

In the present case, the Subpoena at issue seeks:

MEDICAL RECORDS: Complete medical and/or therapeutic treatment records of MELVIN ANTHONY, JR., from 03/01/2026 to present including but not limited to any records/documents that may be stored digitally and/or electronically: TeleHealth Records and any recordings, documents, correspondence, correspondence from the patient or patient's attorney, patient intake forms, registration forms, patient information sheets, demographic records, appointment logs, scheduling records, attendance records, cancellation records, copies of health insurance cards and photo ID's, medical reports, doctor's entries, nurse's notes, medication administration records, office notes, progress reports, lab reports, pathology reports, monitor strips, physical therapy records, therapy records, occupational therapy records, case history, emergency records, outpatient records, diagnosis and prognosis documentation, admit and discharge records, notation(s) on any file folder.

Complete medical records of MELVIN ANTHONY, JR.'S mental, psychological, and emotional condition from beginning of treatment at your office to present including but not limited to any records/documents that may be stored digitally and/or electronically: TeleHealth Records and any recordings, documents, correspondence, correspondence from the patient or patient's attorney, patient intake forms, registration forms, patient information sheets, demographic records, appointment logs, scheduling records, attendance records, cancellation records, medical reports, doctor's entries, nurse's notes, medication administration records, office notes, progress reports, lab reports, pathology reports, monitor strips, therapy records, occupational therapy records, case history, emergency records, outpatient records, diagnosis and prognosis

documentation, admit and discharge records, notation(s) on any file folder.

All communications with the (sic) MELVIN ANTHONY, JR., or any representative on behalf of MELVIN ANTHONY, JR., including secure messages and every such record, including those existing in electronic, written, recorded, or magnetic form in the possession, custody or control of the said witness, and every such record to which the witness may have access.

(Plaintiff Decl., Exh. A, Attachment 3.)

As phrased, the descriptions in the Subpoena seeking “[c]omplete medical and/or treatment records” and “[a]ll communications”, including those recordings, identification materials, administrative records, billing communications, and “correspondence from [Plaintiff] or [his] attorney,” are overly broad and seeks broad categories of documents. The categories of documents to be produced must be “reasonably” particularized from the standpoint of the party on whom the demand is made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) While some items listed may include some documents which are relevant and reasonably calculated to lead to admissible evidence, an otherwise permissible description of categories in a deposition subpoena may become burdensome if combined with detailed “definitions” and “instructions” that expand and complicate the demand. (*Id.*) Here, the Subpoena is not tailored to the claimed injury and also seeks privileged information.

Privacy:

The party asserting a privacy interest has the burden of establishing its extent and the seriousness of the prospective invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) A party asserting a right to privacy must establish: (1) “a legally protected privacy interest”; (2) “a reasonable expectation of privacy in the circumstances”; and (3) “conduct by defendant constitutes a serious invasion of privacy.” (*Hill v. Nat’l Collegiate Athletic Ass’n* (1994) 7 Cal.4th 1, 39-40; see also *Williams, supra*, 3 Cal.5th at 552.) Plaintiff maintains he is entitled to confidentiality for unrelated medical and psychotherapeutic treatment. (*Britt, supra*, 20 Cal.3d at 859-864.) This is a valid argument to justify Plaintiff’s objection to the Subpoena.

The burden shifts to RPK, the party seeking discovery, to show that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 843-844.) Assuming the proponent meets its burden, the court then must “carefully balance” the competing interests: the right of privacy versus the interest in obtaining just results in the litigation. (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 573.) However, even when the balancing weighs in favor of disclosure, the courts must narrowly tailor the order to preserve the right of privacy to the greatest extent. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.)

Here, RPK acknowledges Plaintiff’s right to privacy for unrelated medical and psychotherapeutic treatment. (Opp., pg. 6:14-16.) RPK explains, however, that as long

as Plaintiff maintains his allegation of severe emotional distress, RPK is entitled to discovery of all records directly related to the conditions Plaintiff placed at issue, to wit: humiliation, anxiety, and mental anguish. In this regard, RPK does not dispute the privacy aspect as to unrelated materials.

Attorney-client privilege:

RPK argues that Plaintiff, as an unrepresented party, may not assert attorney-client privilege.

Generally, “[t]he attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client ‘to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer.’” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732.) “The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship. [Citations.] Once that party establishes facts necessary to support a prima facie claim of privilege, the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish the communication was not confidential or that the privilege does not for other reasons apply.” (*Id.* at 733; see *Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.)

While it is true that Plaintiff is unrepresented, the principles of the attorney-client privilege are no less valid.

RPK also argues the attorney work-product doctrine does not apply because Plaintiff is pro per. However, attorney work product pertains to an attorney’s thoughts, impressions, or legal theories on a matter. (*County of Los Angeles v. Superior Court* (2000) 82 Cal.App.4th 819, 833.) The work product privilege “may also be asserted by a pro se litigant because the privilege ‘is intended for the protection of litigants, not just attorneys.’ [Citation.]” (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 977.)

Psychotherapist-patient privilege:

Evidence Code section 1014 creates a privilege for confidential communications between a patient and a psychotherapist. The psychotherapist has a duty to claim the privilege. (Evid. Code, § 1015.) There are several exceptions. (*Id.* at §§ 1016-1027.) “[T]he patient-litigation exception allows only a limited inquiry into the confidences of the psychotherapist-patient relationship, compelling disclosure of only those matters directly relevant to the nature of the specific ‘emotional or mental’ condition which the patient has voluntarily disclosed and tendered in his pleadings or in answer to discovery inquiries.” (*In re Lifschutz, supra*, 2 Cal.3d at 431.) The *Lifschutz* court rejected the argument that when a plaintiff institutes a claim for physical or mental injury, the plaintiff automatically waived his statutory privileges as to all protected communications. (*Id.* at 435.) The *Lifschutz* court held such argument is an intolerable and overbroad intrusion into the patient’s privacy, creating opportunities for harassment and blackmail. (*Id.*) Under Evidence Code section 1016, disclosure can be compelled only with respect to those mental conditions the patient-litigant has disclosed by bringing an action in which they are

in issue; communications not directly relevant to those specific conditions do not fall within section 1016's exception and therefore remains privileged. (*Britt, supra*, 20 Cal.3d at 863-864.)

As noted, the Subpoenas are overly broad and encroaches upon the psychotherapist-patient privilege. Again, RPK does not oppose narrowing the scope of the Subpoena as follows:

"Any and all psychotherapy records, medical records, pharmaceutical records, disability records, billing records, and communications relating to Melvin Anthony, Jr.'s claimed emotional distress, including humiliation, anxiety, and mental anguish, from March 1, 2026 to the date of production."

(Opp., pg. 6:22-25.)

In reply, Plaintiff argues this language still uses broad categorical labels and the phrase "any and all" without defining the required nexus to the incidents and conditions tendered. RPK's proposed language still uses broad categorical labels and seeks categories that can be obtained through less intrusive means. RPK can obtain information regarding Plaintiff's disability through less intrusive means such as written discovery or taking Plaintiff's deposition. (*Vinson, supra*, 43 Cal.3d at 843-844.)

The Court shall adopt Plaintiff's proposed language for the subpoena modification in order to best preserve Plaintiff's right of privacy and privileges to the greatest extent. (*Britt, supra*, 20 Cal.3d at 859; *In re Lifschutz, supra*, 2 Cal.3d 415; *Costco Wholesale Corp., supra*, 47 Cal.4th 725.)

Plaintiff's Motion to Quash or in the Alternative, Modify Deposition Subpoena for Production of Business Records GRANTED in PART.

Defendant is ordered to submit NEW subpoena with the modified language below:

"Production limited to nonprivileged records dated March 1, 2026 forward that directly concern the emotional conditions Plaintiff attributes to the April 18, 2025 and May 22, 2025 towing incidents and related conduct, including any directly relevant assessment of the causes of those same conditions. Any unrelated mental or emotional conditions, unrelated medical or disability history, unrelated pharmaceutical treatment, third-party information, identification and insurance documents, or unrelated administrative material shall be excluded or redacted."

Defendant to comply with notice requirements pursuant to CCP 1985.3(b)(3).

Defendant's request to apply this order to deposition and trial testimony of Desert Insight providers is DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	DEFENDANTS CANYON ESTATES HOME OWNERS ASSOCIATION, DESERT RESORT MANAGEMENT, INC. DBA ASSOCIA DESERT RESORT MANAGEMENT, NANCY BURKE, MICHAEL WALLACE AND RANDALL WELSH'S DEMURRER TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Tentative Ruling: To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) “[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need on’ly plead facts necessary “to acquaint a defendant with the ^{na}ture, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a vali^d cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (*citing Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Newly added 12th – 14th causes of action:

Granting leave to amend in an order sustaining a demurrer “must be construed as permission to the pleader to amend the cause of action which he pleaded in the pleading to which the demurrer has been sustained.” (*People ex rel. Dept. of Pub. Wks. V. Clausen* (1967) 248 Cal.App.2d 770, 785.) Normally, such leave does not allow the pleader leave to add a new cause of action unless “the new cause of action directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) The court’s previous leave to amend did not open the opportunity to allege the new causes of action; therefore, they were filed without leave of court.

Uncertainty:

Defendants again demur to the 1st – 7th, and 10th causes of action. A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

In ruling on the demurrer to the SAC, as to the 1st – 7th and 10th causes of action, the court found the pleading uncertain as to the five moving Defendants as the entire SAC lumped all five defendants together and identified as HOA Defendants, yet failed to set forth separate factual basis for liability against each. Accordingly, the court sustained the entire SAC as to moving Defendants, with leave to amend. The court’s minute order clearly articulates the deficiency to be addressed in any amendment, yet once again, Plaintiffs lump each of the Defendants together and never set forth allegations as to what each individual is alleged to have done that could support individual liability as to each.

Plaintiffs’ failure to address the court’s explicit prior ruling would support the court sustaining these 8 causes of action without leave to amend. However, the court shall allow one final opportunity to plead separate facts regarding each Defendant that they allege support liability against each individual defendant. The court advises Plaintiffs that no further opportunities to correct this deficiency will be allowed and failure to address the deficiencies will result in the court sustaining without leave to amend.

Demurrer as to the 12th, 13th and 14th Causes of Action SUSTAINED without leave to amend.

Demurrer as to the 1st-7th and 10th Causes of Action SUSTAINED with leave to amend. Plaintiffs to file an amended complaint within 30 days of this order.

Case Management Conference continued to November 9, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	DEFENDANTS CANYON ESTATES HOME OWNERS ASSOCIATION, DESERT RESORT MANAGEMENT, INC. DBA ASSOCIA DESERT RESORT MANAGEMENT, NANCY BURKE, MICHAEL WALLACE AND RANDALL WELSH'S MOTION TO STRIKE AS TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Tentative Ruling:

The motion to strike fails to comply with CRC rule 3.1322(a), putting the onus on the court to identify and number requests for ruling.

Accordingly the motion to strike is denied in its entirety.

Defendants' Motion to Strike DENIED.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	MOTION FOR LEAVE TO AMEND 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF DOG HOUSE PASEO DEL REY, LLC BY DOG HOUSE PASEO DEL REY, LLC, MICHAEL WILLIAMS, AS TRUSTEE TO THE BRAD ROBERT PRESCOTT LIVING TRUST, MICHAEL WILLIAMS, BRIAN HARP KRAFT, TRUSTEE TO THE BRIAN HARP KRAFT LIVING TRUST

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048;

Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

While leave to amend may be denied if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*California Casualty*, 173 Cal.App.3d 173, 281.) Leave to amend should be denied for failure to state a cause of action only when the insufficiency of the proposed amendment is established by controlling precedent and the insufficiency could not be cured by further appropriate amendment. (*California Casualty*, 173 Cal.App.3d 173, 281.)

Plaintiffs submitted an original complaint on August 14, 2025, followed by the First Amended Complaint on November 21, 2025. After the court granted a motion to strike several portions of the FAC related to punitive damages, Plaintiffs filed a Second Amended Complaint on March 2, 2026. A sustained demurrer as referenced in the tentative ruling for the Demurrer to the 3rd Amended Complaint, resulted in Plaintiffs filing a Third Amended Complaint on June 11, 2026. Plaintiffs now seek leave to amend two months after having already filed their Third Amended Complaint with the added causes of action.

In the declaration of Plaintiffs’ attorney, Eric M. Khodadian, he states that the additional causes of action were not made “because Plaintiffs did not become aware that these additional causes of action may be asserted until Plaintiffs were in the process of drafting the TAC...” (Dec. ¶15). This statement is not in compliance with CRC 3.1324(b) which requires the moving party to include in the declaration when the facts were discovered giving rise to the amendment AND why it was not made earlier. There is no basis as to what facts were discovered and how they were not discovered earlier, especially in light of the multiple revisions of the complaint as outlined above.

However, as pointed out in Plaintiff's reply the new causes of action for Premises Liability, (12th), Trespass (13th) and Financial Elder Abuse (14th) are based on allegations and facts previously pleaded in the Second Amended Complaint, and the court finds that permitting those causes of action as well as punitive damages to be included is not prejudicial.

Plaintiff's Motion for Leave to Amend is GRANTED.

Plaintiff is directed to submit an amended complaint reflecting the amended causes of action 1st-7th and 10th, and include the new causes of action listed in the preceding paragraph.

Amended complaint to be filed within 30 days of this order.

Case Management Conference continued to November 9, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY

Tentative Ruling: No tentative ruling.

Hearing is continued to September 21, 2026 to permit Defendant to submit a Reply to the untimely filed Opposition. Reply to be filed by September 14, 2026. No further briefing permitted.

Case Management Conference continued to September 21, 2026.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600851	PALACIOS VS ANSCHUTZ ENTERTAINMENT GROUP, INC., A CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF JAVIER REGINO PALACIOS BY GOLDENVOICE, LLC, A LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to October 23, 2026. The parties are ordered to ***meet and confer via in person, teleconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Defendant vacate the hearing on the demurrer, and file an Answer;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.

Case Management Conference continued to October 23, 2026. Parties are directed to not submit updated Case Management Statements for the next hearing date.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2602881	CHAPMAN VS CHAPMAN	MOTION TO BE RELIEVED AS COUNSEL FOR DAVID CHAPMAN

Tentative Ruling:

Motion to be Relieved as Counsel GRANTED

Counsel to submit proposed order MC-053. Court will sign proposed order once submitted.

Attorneys Vincent Whittaker, Chandra Roam and Emma York are relieved as counsel of record for Defendant/Cross-Complainant David Chapman, effective upon the filing of the proof of service of the signed order upon the client.

Motion to Quash Deposition Subpoena for Production of Records is continued to October 21, 2026..

Case Management Conference is confirmed for October 21, 2026.

A status hearing re representation for Defendant/Cross-Complainant David Chapman is scheduled for October 21, 2026.